

THE RULES THAT DECIDE PDD

You are allowed to read almost none of them. Persons with Developmental Disabilities · The Alberta Disability System Breakdown · September 2026

Three things decide whether an adult with a developmental disability gets help in Alberta. Whether you qualify. Whether you get a service plan. How much you get.

You can read the first one. The other two are not published anywhere.

THE FIRST GATE IS A TEST YOU CANNOT SEE

To qualify for PDD you must show a significant limitation in **both** intellectual capacity **and** adaptive skills. That is section 1(1)(c) of the Persons with Developmental Disabilities Services Act, and the Act sends you to the regulation for what those limitations are.

The regulation is six sections long. On adaptive skills it says this:

*a significant limitation in adaptive skills is the inability to perform **6 or more adaptive skills** ... as determined in accordance with the **Developmental Disabilities Guidelines** published by the Minister as amended from time to time*

Six or more. Out of how many, it does not say. The regulation used to list ten skill areas, but that list applies only to applications made before 1 August 2009. For anyone applying today the regulation names no skills at all.

So you follow it to the Guidelines. The Guidelines are a page of the policy manual, undated, and they say the tool is the **PDD Adaptive Skills Inventory**, "performed for every applicant and **administered by trained PDD staff.**"

Then the trail stops. The Inventory is not published on that page or anywhere else on the government's site.

The policy manual does say, in passing, that the program "has identified **twenty-four** adaptive skill areas." So the number is theirs. Six of twenty-four decides your file, and the twenty-four are not written down anywhere you can reach.

Read that beside the other half of the test. Your intellectual capacity is assessed by a registered psychologist you have to find and, in most cases, pay for. Your adaptive skills are assessed by the program that is deciding your application, using an instrument it does not publish.

AND THE NUMBER EVERYONE QUOTES IS NOT THE RULE

The government's own eligibility page says an IQ of 70 or lower. So does one page of the policy manual.

The Guidelines page of the same manual says something different. It requires a full-scale score two standard deviations or more below the mean, "**using a confidence interval of 95% while considering the standard error for measurement**" for the specific instrument used.

That is not a cut-off. A score above 70 can still meet it. A score at 70 might not. The version that reaches families is the flat number, and the flat number is the one that makes people decide not to apply.

Two other things sit on that page and on no public page:

- The IQ test must have been done **within the last five years** of your application, unless the result is three or more standard deviations below the mean, or you have two tests at least two years apart both showing two or more, or "**as otherwise determined by the appropriate PDD staff.**"
- The psychologist must be registered in **Canada, the United States, Australia or New Zealand.** Nowhere else is accepted.

THE SECOND GATE IS TWO WORDS

Being eligible does not get you services.

The policy manual says a service plan is developed for individuals who "are PDD-eligible, have a completed Assessment of Needs, **have critical and urgent needs**, and are approved for services." And that people who need PDD services but have no immediate critical or urgent need "**may not begin services right away.**"

We read all thirty-six sections of the policy manual and searched every one of them for that phrase and its variants.

- "Critical and urgent" appears in **two** sections.
- It is **never defined**. No criteria, no threshold, no examples.
- It appears **nowhere in the Act**.
- It appears **nowhere in either regulation**.

So you can meet every condition written in law, finish the assessment, and receive nothing, because of a standard that exists only as two words in a policy document.

THE THIRD THING IS A PRICE

The manual says service planning is "influenced and informed by" a document called the **PDD Principles for Determining Individual Support Needs**. That is the document that decides how much support you get. It is published, so we pulled it.

It is one page. A foundation principle and five supplementary principles. Supports should be "adequate, flexible and individualized." Staff should "follow their lead, rather than taking control."

There is no method in it. No scale, no criteria, no figures.

It is a photocopier scan made in **September 2015** with no text layer, which also means a screen reader cannot read it. The document that governs how much support a person with a disability receives has been published in that state for eleven years.

AND THE RATE IS NOT PUBLISHED EITHER

We searched the Act, both regulations, and all thirty-six sections of the policy manual for a rate, an hourly figure, a maximum, a cap, an allowance or any dollar amount.

In the whole manual there is **one** dollar figure: **\$1,000,000**, the errors-and-omissions insurance a professional-service contractor has to carry. It is about procurement. It is not about a person.

The only quantity the manual puts on an individual is in the glossary: "an Individual cannot be allocated more than 24 units per day." A unit is an hour. That is the length of a day.

The rate itself is real, and it is somewhere. The glossary says an invoice shows the rate "as specified in **Schedule B**" of the service agreement. The published Service Provider Agreement says Schedule B is the invoice format, and that the rate arrives in a **Referral Confirmation** which "will indicate the payment rate per Individual for the types of Services as described in **Schedule A**."

Two government documents, two different answers about where the rate lives. Neither of them contains it.

IF YOU MANAGE THE SERVICES YOURSELF

Family Managed Services lets a parent, or someone close, run the services instead of an agency. The person who signs is the FMS Administrator, and the government's own page is blunt about the terms: "**They are not paid for this job.**"

What they do take on:

- hiring, training, supervising and paying staff
- following Alberta's employment standards and the **Workers' Compensation Act**
- keeping business records for **seven years**
- **paying for approved services first**, then claiming reimbursement **within 10 days after month-end**
- periodic documentation reviews under the **Financial Administration Act**

An unpaid family member becomes a legal employer, floats the cost of their relative's care, files to a ten-day deadline, and is audited for it.

The agreement they sign is published. It runs to about nine thousand characters, has no Schedule B in it, and its one dollar figure is the placeholder **\$00.00**.

A WATCHDOG CALLED ONE OF THESE RULES DISCRIMINATORY

In May 2024 the Alberta Ombudsman published *Denied by Design*, after a mother complained that her son had been refused PDD on his IQ score alone.

The Ombudsman made three findings. The regulation "prevents the PDD program from considering other information about an applicant, **such as school records.**" The appeal panel had agreed the young man's IQ score was not valid, and the program's inaction afterwards was "**administratively unfair.**" And then the third:

*If the Regulation is not updated, appeal panels will continue to be prevented from changing the PDD program's decisions when the applicant's IQ score is invalid. ... This may specifically impact vulnerable Albertans, such as those with **autism spectrum disorder and fetal alcohol spectrum disorder (FASD)**. Therefore, the current Regulation is **unreasonable and improperly discriminatory.***

He recommended the regulation be amended to match current psychological standards as defined by the DSM-5, and he put a date on it: "**immediately and in any event, no later than the expiry of the Regulation on September 30, 2024.**"

The Deputy Minister replied that the regulation was scheduled for review in 2024 and the findings would be considered. The second recommendation, to reconsider the young man's own application, was **rejected**. He was 21, and had been without PDD for three years.

A court had already said the same thing. The report records a **2013 Court of Queen's Bench decision** finding that an IQ score was never intended to be the sole determinant of eligibility. Between that decision and the report, the regulation was reviewed **three times** with no amendments.

WHAT THE 2024 REVIEW CHANGED

We checked this ourselves, against the King's Printer text, section by section.

The regulation has been amended four times since it came into force on 1 January 2014. In the consolidated text, only **one** section carries an amendment citation, and it is **section 5, the expiry date**. Sections 1, 2, 3, 4 and 6 carry none. They stand exactly as enacted.

The review happened on **26 September 2024**. Four days before the date the Ombudsman named.

What changed was the expiry date. It now reads **30 September 2029**.

Section 3 — the provision an independent oversight office called unreasonable and improperly discriminatory — was not touched. It was carried forward another five years.

THE CLOCKS, AND THE ONE THAT WILL COST YOU

There are three ways to challenge a PDD decision, and they do not behave the same way.

Appeal — 45 days. Section 15(3)(b) of the Act: 45 days from the day you were notified of the decision. Unlike FSCD, the Minister **can** extend this. Section 15(6).

Mediation — ask within 30 days. Section 14.1(2). If you mediate first, the appeal deadline becomes 30 days from the day mediation ends. Two things the guidance page does not tell you. The regulation says the parties **"shall share equally the fees and expenses of the mediator."** And "the day the mediation ends" is only defined for one of the two ways mediation can finish — if your mediator recommends terms rather than declining to, the regulation fixes no end date at all, so the 30-day clock has no start.

The internal review — this is the one. The government's page offers a review by a senior PDD worker who was not involved in the decision. It gives you **30 days to ask** for it, and says the review "is completed within **15 working days** from the date you asked for it."

Fifteen working days is three calendar weeks, longer across a holiday. So:

YOU ASK FOR A REVIEW ON	THE ANSWER COMES ABOUT	APPEAL DEADLINE	WHERE THAT LEAVES YOU
Day 24	Day 45	Day 45	Just inside
Day 25	Day 46	Day 45	Already closed
Day 30 — the last day allowed	Day 51	Day 45	Six days too late

Both of those numbers are the department's own, published on the same page. And the review itself appears nowhere in the Act or in either regulation. The manual cites section 14.1 of the Act, which is mediation, and section 2 of the regulation, which is the list of things you **cannot** appeal.

Nothing in law pauses the 45-day clock for an internal review. Use the review if you want, but file the appeal as well.

TWO THINGS IN YOUR FAVOUR, IN THEIR OWN WORDS

Most of this document is about what is missing. These two are not.

Your eligibility cannot be re-tested. The manual: individuals who have previously received PDD-funded services "have already been determined eligible for the program and **will not have their eligibility reassessed.**"

Your file cannot be closed for convenience. It may be closed only where it is confirmed you no longer need supports, you have left Alberta permanently, or you have died. The reason must be given **in writing**. Reopened files "will not require reassessment." And: "**Files will not be closed in any case where the Individual requires ongoing case management supports.**"

Quote those back if you are told otherwise.

WHAT YOU CAN DO

- **Ask for the Adaptive Skills Inventory before your assessment**, in writing. Ask for the list of twenty-four skills and the scoring. You are entitled to know what you are being measured against.
- **If you were told you do not qualify on an IQ score**, ask in writing whether the 95% confidence interval and the standard error of measurement were applied, as the Guidelines require. A flat 70 is not the rule.
- **If your file is eligible but you have no services**, ask in writing what "critical and urgent" means, who decided you did not meet it, and what authority in the Act or the regulation that standard comes from.
- **Ask what rate is being paid** for your services, and which document sets it. If you are told Schedule B, ask for the Referral Confirmation as well.
- **Do not let a review eat your appeal.** File the appeal inside 45 days whatever else you are doing. Ask for every decision in writing, and write the date it reached you.
- **If a decision only ever came by phone**, say so in writing. The manual requires decisions to be given in a written Notice of Decision letter.
- **If you cannot open the appeal form**, you are not stuck. PDD0021 needs Adobe Reader on a computer and its own first page says it will not work on a mobile device. The same form is reproduced in full in the Schedule to AR 228/2013, which is plain text and opens on any phone. Copy those fields onto paper and file that.

WHERE THIS COMES FROM

Everything above was read in full, in the version named here, on 28 September 2026. Nothing is quoted second-hand. Where we could not establish something, we have said so rather than guessed.

Statute

- Persons with Developmental Disabilities Services Act, Chapter P-9.5 — current as of **7 December 2023**. Alberta King's Printer.

Regulations — there are three, and one of them is a repeal

- Developmental Disabilities Regulation, **AR 230/2013** — current as of **26 September 2024**, consolidated up to AR 162/2024. Six sections. Expires 30 September 2029.

- Persons with Developmental Disabilities Services Regulation, **AR 228/2013** — current as of **26 September 2019**, consolidated up to AR 115/2019. Contains the appeal architecture and the Notice of Appeal form in its Schedule.
- Persons with Developmental Disabilities **Safety Standards Repeal Regulation (2016)**. There is no PDD safety standards regulation — only the instrument that repealed one. Both its King's Printer page and its Open Government page now return errors. Safety and safeguards have sat at policy level since.

Policy manual

- PDD Policy Manual, manuals.alberta.ca — 38 sections, 36 read in full. **The manual publishes no version or revision date.** Sections drawn on here: Eligibility requirements · Developmental disability · Application process · Coordination between PDD and Disability Income Assistance applications · Assessment of Needs · Service Plan – Review of Information · Service Plan Determination · Concern resolution processes · General – Safeguards and standards · Family Managed Services · File closure · Tools and resources · Developmental Disabilities Guidelines · Glossary.

Guidance pages, alberta.ca, all read 28 September 2026

- PDD hub · Eligibility · Supports and services · How to apply · How to get services · Resolve concerns · Appeal a decision · Resources · How to stay safe · Disability Services office locations.

Government documents

- PDD Principles for Determining Individual Support Needs — scanned 2 September 2015, no text layer.
- Family Managed Services Agreement, and Your Companion Guide to it.
- Service Provider Agreement.
- Notice of Decision letter template.
- PDD Risk Analysis Form, and the Risk Analysis Guide.
- **PDD0021** Notice of Appeal — a dynamic form, created 27 January 2025.

Independent oversight

- *Denied by Design*, Alberta Ombudsman, **7 May 2024**, 14 pages. Findings and recommendations at pages 11–12; the Department's response at page 12.

What we looked for and could not find

- **The PDD Adaptive Skills Inventory**, on any government page. The only public copy located is an undated, unbranded summary sheet hosted by a third-party organisation and uploaded in 2018. We have not treated it as the current instrument.
- **A definition of "critical and urgent"**, anywhere in the Act, either regulation, or any of the 36 manual sections read. Searched for: critical and urgent, critical or urgent, criticality, urgency.
- **Any published rate, cap or hourly figure for an individual.** Searched every section for dollar amounts and for: rate, per hour, hourly, maximum of, up to, cap, capped, limit of, dollar, funding amount, allowance, honorarium.
- **The "Criteria for Payment of a Family Member"**, a document named in the Family Managed Services policy.

One thing we are still checking. AR 228/2013 is consolidated only to 2019. Seven years is a long time to leave unchecked in an appeal regulation, and we will say so plainly rather than imply the text is current.